

The NHS Can Never Fail: There Is No Circumstance Where It Would Be Deemed Overwhelmed

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Image: A heart that says NHS (Nicolas J Leclercq on Unsplash)

Yesterday marked the publication of the Module 3 report of the Covid inquiry. You can read a summary version or the full version of the report. The report stresses that there were key failings with respect to government policy during the pandemic. A key point is that the assumption made by government centred around contact transmission rather than aerosol transmission. This was obviously incorrect and it led to rapid spread of the disease and inadequate PPE for NHS staff. As the summary report says:

Preventing the spread of Covid-19 in healthcare settings was paramount to protect patients and healthcare workers. Initial guidance on preventing the spread of infection was flawed. It assumed the virus was spread by contact transmission, failing properly to consider the extent to which it was also spread by airborne transmission. In future, guidance should assume that all plausible routes of transmission are possible until sufficient evidence proves otherwise.

So far, so good. However, there's something that bugs me, and that is that the core takeaway message that Baroness Hallett stresses in both the documents is that "the healthcare systems coped with the pandemic, but only just".

What is this supposed to mean? Over 200,000 people have COVID as a cause of death between 2020 and 2023 (thanks to [Ernesto Priego](#) for the stat.). Did we cope with their healthcare needs, but only just? The report also notes that some people had inappropriately and non-consensually placed Do Not Resuscitate orders. Is that coping? I was told by doctors that hospitals were just not safe for me during the height of the pandemic. I was therefore not monitored as closely as I might have been. In that time, my kidneys failed, and we picked up on it far too late. This meant that I lost all of my kidney function and now have to do haemodialysis for the rest of my life. This is because the NHS could not cope with the additional strain of regular healthcare on top of a pandemic. Is this coping? Doctors said that A&E (Accident and Emergency; the UK's ER) was like a war zone. The advice was simply: don't require emergency treatment at this time. Is that really coping?

I have come to the conclusion that there is no circumstance whatsoever in which a report like this would say that the NHS was overwhelmed and did not cope. The reason for this is a type of survivorship bias. Because, obviously, we live in a civilization that has got through the peak of the pandemic, and we are still here and the NHS is still here, we say that we must have coped and survived. So many people did not survive, though.

Of course, when a lethal pandemic strikes, it is unrealistic not to expect that there will be some casualties. Healthcare is not a miracle, click-your-fingers-and-everything-is-resolved-instantly situation. But seeing the level of death that we encountered, and understanding the indirect harms

that were done through withdrawal of normal service, shows me that we did not cope. Nowhere near.

edit/addendum: I suppose there might be a political reason for this. If you say the NHS failed, there might be the political justification to tear it all down and withdraw our universal healthcare system. That would be a tragedy. More than a tragedy. And I think this is really the crux of it: these reports are political reports, not objective reports on the state of healthcare. What they say has rhetorical impact, and so they need to take political care.

I am also frustrated by the framing of shielding within these documents. The summary version reads:

People with certain underlying health conditions were particularly vulnerable to Covid-19 infection. The shielding programme was intended to provide additional protection and support but the advice to stay at home and avoid face-to-face contact led to many struggling to cope. Communications with those shielding were not always handled appropriately, with some people incorrectly advised to shield and others not advised to shield when they should have been.

For people like me with severe immunodeficiency and immune replacement therapies, shielding was the thing that kept me safe. Sure, it's not easy to go into isolation for years on end. Trust me, I know. But being isolated was not the core problem. The core problem was that the government inappropriately took away the advice to shield, meaning that employers could force people who were extremely vulnerable back into public spaces and work environments. Far from the problem being that people were told to shield for too long, the actual situation is that people were advised to shield for far, far too short a period, because of the government's obsession with reopening the economy in full. Government advice to shield was a strong legal signal that people with immune compromise needed disability adjustments at work; namely: to be able to work from home. When the government withdrew that advice, that protection was also withdrawn.

I am sure that some people did suffer mental health damage as a result of having to live in isolation. I think I did. But the government weaponized this phenomenon. They picked up on the sentiment that people might not like being told to live in isolation and stated that this was harming people's mental health. They thereby withdrew a legal protection in the form of their advice, believing that the physical harm that immunocompromised individuals might encounter was less worthy of attention and less significant than any mental health damage. You might die from Covid infection, but at least you'll be happy. (I should note that when I say the government "believed" that the physical harm was less, that this is probably nonsense. I think they knew full well that they were putting people in harm's way, but were so invested in appeasing business that it made no difference.)

The most important outcome of this report, in its recommendations, is that future pandemics should assume that "all plausible routes of transmission are possible until sufficient evidence proves otherwise". This is a powerful and worthwhile statement. We should, of course, praise the report where it does things well.

But parts of this report are so problematic. It leaves me wondering what on earth it would take to say that the NHS was overwhelmed and did not cope. It feels to me as though the NHS can never fail. There is no situation where it would be deemed to be overwhelmed.